

26NNCV00802 26NNCV00802

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-06-26

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Case Number: 26NNCV00802 Hearing Date: June 26, 2026 Dept: A

DEMURRERS;

motions to strike

Los

Angeles Superior Court Case # 26NNCV00802

MP: (1) Defendant Xiangdong Zhang

(2) Defendants Oriternal Medical,
LLC, Xiangdong Zhang, and Wei Wu

RP: No opposition received

NOTICE:

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given either by email at or by telephone at (818) 260-8412.

MOTIONS

ON CALENDAR:

On April 7, 2026, Oriternal, Zhang, and Wu filed a Demurrer and Motion to Strike the Complaint in a single document.

On April 16, 2026, Zhang filed a Demurrer and Motion to Strike the Complaint in a single document.

The Court is not in receipt of an opposition brief. The Court notes that, pursuant to C.R.C. Rule 8.54(c), a failure to oppose a motion may be deemed consent to its being granted.

The Court notes there is a third demurrer and motion to strike filed by Wu on April 16, 2026 that is set for July 10, 2026.

ANALYSIS:

In order to hear the demurrers and motions to strike together and for consistency purposes, the Court continues the hearing on the demurrers and motion to strike filed by: (1) Oriternal, Zhang, and Wu; and (2) Zhang to July 10, 2026 so that they can be heard concurrently with the demurrer and motion to strike filed by Wu.

RULING:

In the event a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

(1)

Defendants Oriternal Medical, LLC, Xiangdong Zhang, and Wei Wu's Demurrer and Motion to Strike and (2) Defendant Xiangdong Zhang's Demurrer and Motion to Strike came on regularly for hearing on June 26, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as

follows:

The Demurrers AND MOTIONS TO STRIKE FILED BY: (1)
DEFENDANTS ORITERAL MEDICAL, LLC, XIANGDONG ZHANG, AND WEI WU; AND (2)
DEFENDANT XIANGDONG ZHANG ARE CONTINUED TO JULY 10, 2026 AT 9:30 A.M. SO THAT
THEY CAN BE HEARD CONCURRENTLY WITH DEFENDANT WEI WU'S DEMURRER AND MOTION TO
STRIKE.

defendant ORITERAL MEDICAL, LLC TO GIVE NOTICE.

IT
IS SO ORDERED.